

## 25STCV06991 25STCV06991

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-31

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Case Number: 25STCV06991 Hearing Date: July 31, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion - Other For Attorney's Fees Under The Catalyst Theory

Plaintiff's Motion for Attorney Fees Under the Catalyst Theory is denied.

### BACKGROUND

Plaintiff Jennifer R. Caudillo-Garcia  
(Plaintiff) filed this action against Defendant Los Angeles Unified School District (LAUSD).

The operative First Amended Complaint alleges six causes of action under the Fair Employment and Housing Act for (1) Disability Discrimination; (2) Failure to Accommodate; (3) Failure to Engage in the Interactive Process; (4) Age Discrimination; (5) Retaliation; and (6) Failure to Prevent Discrimination, Harassment, and Retaliation. The Prayer for Relief requests general and special damages, attorney fees, costs of suit, medical and incidental expenses, prejudgment interest, and lost earnings and earning capacity.

Plaintiff filed a Motion for Attorney Fees Under the Catalyst Theory. LAUSD filed an Opposition.

### LEGAL STANDARD

Each party to litigation ordinarily bears its own attorney fees except as fees are specifically provided for by statute. (Code Civ. Proc., § 1021.)

Code of Civil Procedure section 1021.5

codifies the private attorney general doctrine. It permits a discretionary fee award to a successful party in an action that has resulted in the enforcement of an important right affecting the public interest if a significant benefit has been conferred on the general public or a large class of persons, the necessity and financial burden of private enforcement make the award appropriate, and the fees should not in the interest of justice be paid out of any recovery. (Code Civ. Proc., § 1021.5.) All of the statutory requirements must be satisfied to justify an award. (County of Colusa v. California Wildlife Conservation Bd. (2006) 145 Cal.App.4th 637, 648 (County of Colusa).) In civil actions under the Fair Employment and Housing Act, Government Code section 12965, subdivision (c)(6), separately authorizes a discretionary award of reasonable attorney fees and costs to the prevailing party.

“Prevailing party” and “successful party”

are synonymous terms, and neither requires that the party obtain a court judgment. (Tipton-Whittingham v. City of Los Angeles (2004) 34 Cal.4th 604, 610 (Tipton-Whittingham).) A successful party is “the party to litigation that achieves its objectives.” (Graham v. DaimlerChrysler Corp. (2004) 34 Cal.4th 553, 571 (Graham).) Under the catalyst theory, “attorney fees may be awarded even when litigation does not result in a judicial resolution if the defendant changes its behavior substantially because of, and in the manner sought by, the litigation.” (Id. at p. 560.) A plaintiff invoking the theory must establish “(1) the lawsuit was a catalyst motivating the defendants to provide the primary relief sought; (2) that the lawsuit had merit and achieved its catalytic effect by threat of victory, not by dint of nuisance and threat of expense, as elaborated in Graham; and, (3) that the plaintiffs reasonably attempted to settle the litigation prior to filing the lawsuit.” (Tipton-Whittingham, supra, 34 Cal.4th at p. 608.) The theory governs awards under the Fair Employment and Housing Act as it does awards under section 1021.5, and in light of the similarities in language and purpose between the two statutes, in deciding whether and how to award fees under Government Code section 12965 courts look to the rules set forth in cases interpreting Code of Civil Procedure section 1021.5. (Id. at p. 610.)

## ANALYSIS

### I. Availability of the Catalyst Theory

The catalyst theory is the only basis

Plaintiff offers for successful or prevailing party status under either statute, so the analysis that follows governs the request under Government Code section 12965, subdivision (c)(6), and the request under Code of Civil Procedure section 1021.5 alike. The question presented is narrower than whether an interim catalyst award is ever available. LAUSD does not dispute that the catalyst theory reaches Fair Employment and Housing Act claims or that interim awards are permitted; its position is that the theory does not authorize an award “in the middle of a still pending FEHA case in which no cause of action has been dismissed or made moot, and where the plaintiff therefore retains the full statutory fee remedy available to her upon prevailing at trial.” (Objection at 4:24-5:3; Opposition at 12:1-2.) The Court agrees.

What brings a case within the catalyst theory is “the voluntary action of the defendant without any judicial resolution of the issues.” (County of Colusa, *supra*, 145 Cal.App.4th at p. 658.) The absence of an adjudication is not, by itself, sufficient, because the theory serves two identified purposes, and neither is implicated where the plaintiff’s claims remain live. The theory ensures that a defendant may not litigate vigorously against a meritorious action and then avoid fees by voluntarily providing relief before a court order is entered. (Graham, *supra*, 34 Cal.4th at p. 574.) It also conserves judicial resources by encouraging a plaintiff to discontinue litigation once the defendant acquiesces in the remedy initially sought. (*Id.* at p. 573.) LAUSD has escaped nothing: it remains exposed to a statutory fee award on every cause of action Plaintiff pleads. And Plaintiff has discontinued nothing.

Measured against that standard, this action presents no occasion for the catalyst inquiry. Plaintiff has not dismissed any cause of action and has not represented to the Court that any cause of action has been resolved or rendered moot, whether by LAUSD’s voluntary action or otherwise. All six Fair Employment and Housing Act causes of action remain pending, including the Failure to Accommodate and Failure to Engage in the Interactive Process claims arising from the same accommodation denial that Plaintiff identifies as the conduct LAUSD reversed. Should Plaintiff prevail on any of them, she may seek fees as the prevailing party under Government Code section 12965, subdivision (c)(6), and a prevailing Fair Employment and Housing Act plaintiff “should ordinarily receive his or her costs and attorney fees unless special circumstances would render such an award unjust.” (*Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 115.) The hours

for which Plaintiff seeks compensation now are the same hours such an award would cover. (Objection at 6:7-12; Opposition at 13:14-19.) Plaintiff seeks fees for claims she remains free to litigate to judgment, and the catalyst theory does not substitute for a determination that may still be made. (See *Physicians for Social Responsibility - Los Angeles v. Department of Toxic Substances Control* (2026) 118 Cal.App.5th 1071, 1080 [declining to extend the catalyst theory where the relief sought was voluntarily provided only after the claims had been litigated to a final judgment against the fee claimant].)

Section 1021.5 does permit an interim fee award for success conferring a significant benefit before the matter is finally litigated. (*La Mirada Avenue Neighborhood Assn. of Hollywood v. City of Los Angeles* (2018) 22 Cal.App.5th 1149, 1159-1160 (*La Mirada*).) But an award may not be made until the benefit is secure (*Folsom v. Butte County Assn. of Governments* (1982) 32 Cal.3d 668, 679), and an interim benefit supports an award only if it is “complete regardless of subsequent proceedings” (*Ciani v. San Diego Trust & Savings Bank* (1994) 25 Cal.App.4th 563, 576). The approval Plaintiff points to is neither. By its terms, it is contingent on the availability of a remote position for which Plaintiff is qualified, limited to a single academic year, described as accommodating Plaintiff temporarily, and subject to rescission by LAUSD in stated circumstances. (*Caudillo-Garcia Decl., Ex. H.*) The interim benefit in *La Mirada* was a judgment invalidating six zoning variances, which survived appeal and stood unaffected by the later round of litigation over the amended zoning law. (*La Mirada*, *supra*, 22 Cal.App.5th at pp. 1160-1161.) Plaintiff has obtained no comparable determination.

*Tipton-Whittingham* is consistent with this result rather than contrary to it. The plaintiffs there sought injunctive relief and damages; after the Los Angeles Police Department voluntarily instituted antidiscrimination measures, the plaintiffs represented to the district court that their injunctive relief claims were moot, those claims were dismissed on joint motion of the parties, and catalyst fees were sought as to the dismissed claims while the damages claims proceeded under the ordinary statutory route. (*Tipton-Whittingham*, *supra*, 34 Cal.4th at p. 607.) The key distinction is that there, the claims the award compensated had ended without adjudication, so the catalyst inquiry answered a question that could not otherwise be answered. Here, that question can be answered by a fee motion at the end of the litigation.

Plaintiff's offer to credit any award dollar for dollar against a statutory fee award later recovered for the same hours, and her alternative proposal that the Court condition an award on dismissal of the accommodation-relief component of her claims, do not cure the defect. (Reply at 3:23-27.) A credit against a future award presupposes present entitlement rather than establishing it. The conditional-dismissal proposal has the further difficulty that it would rest the award on Plaintiff's own prospective voluntary act. Rejecting the contention that a plaintiff's voluntary dismissal of its claims required catalyst findings, the Court of Appeal has explained that "[w]hat makes a case come under the catalyst theory is not the voluntary action of the plaintiff, but the voluntary action of the defendant without any judicial resolution of the issues." (County of Colusa, *supra*, 145 Cal.App.4th at p. 658.)

Plaintiff has not established successful or prevailing party status under the catalyst theory, and the Motion is denied on that ground under both statutes.

## II. The Primary Relief Sought

Even if the Court accepted that interim relief was proper under these facts, Plaintiff additionally fails to show entitlement to catalyst fees. The first of the three catalyst fee requirements asks whether the lawsuit was a catalyst motivating the defendant "to provide the primary relief sought." (Tipton-Whittingham, *supra*, 34 Cal.4th at p. 608.) The inquiry is directed at the objectives of the action, because a successful party is "the party to litigation that achieves its objectives." (Graham, *supra*, 34 Cal.4th at p. 571.)

Plaintiff's own evidence identifies those objectives. Counsel declares that "[f]ollowing LAUSD's April 10, 2025 reversal, Plaintiff filed a First Amended Complaint on April 21, 2025, refining the pleading to reflect the reinstatement of the accommodation and the continuing claims for damages." (Miller Decl., ¶ 16.) Plaintiff therefore drafted the operative pleading with knowledge that the accommodation had been restored and for the stated purpose of accounting for that restoration. What she elected to plead was six causes of action seeking damages and related monetary relief. (FAC, p. 11, Prayer for Relief.) The First Amended Complaint requests no injunctive relief, no declaratory relief, and no order restoring the remote assignment; no such request appears in any cause of action or in the prayer.

Plaintiff invokes the general prayer for “other such relief as the Court may deem just and proper.” (FAC, p. 11, Prayer for Relief, ¶ 10; Reply at 4:10-13.) Realistically assessed, the objective of this action is compensation for a past denial of accommodation rather than an order restoring the assignment. (La Mirada, supra, 22 Cal.App.5th at p. 1159 [deriving the plaintiffs’ litigation objectives from the relief their operative petitions stated they sought, and rejecting as factually inaccurate an asserted objective broader than the pleading]; see City of San Clemente v. Department of Transportation (2023) 92 Cal.App.5th 1131, 1143, 1150-1151 [where the primary goal a party asserted on appeal was broader than the relief its operative pleading requested, the trial court could reasonably conclude that the relief the pleading sought was the primary relief sought for purposes of the catalyst theory].) A general prayer for such other relief as the Court may deem just and proper does not enlarge that objective.

The relief Plaintiff describes as primary, restoration of her remote-work assignment for the 2025-2026 academic year, is accordingly not an objective of this action, and none of the relief the action does pursue has been provided.

On this independent ground as well, Plaintiff has not established successful or prevailing party status under either statute, and the Motion is denied.

## CONCLUSION

Plaintiff’s Motion for Attorney Fees Under the Catalyst Theory is denied. The denial is without prejudice to a motion for attorney fees at the conclusion of this action.